AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF	PAGES
J	1		28

2. AMENDMENT/MODIFICATION NUMBER	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQUISITION NUMBER	5. PROJECT NUMBER *(If applicable)*
0001	13 Nov 2026	See Continuation Sheet	

6. ISSUED BY	CODE	7. ADMINISTERED BY *(If other than Item 6)*	CODE
NAVFACSYSCOM PACIFIC 258 MAKALAPA DR STE 100, JBPHH HI 96860-3134 JBPHH, HI 96860-3134 UNITED STATES Rachel Gerakas, Email: rachel.m.gerakas.civ@us.navy.mil Telephone: 808-602-5334	N62742	SCD: PAS:	

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*	(X)	9A. AMENDMENT OF SOLICITATION NUMBER / 9B. DATED *(SEE ITEM 11)*	10A. MODIFICATION OF CONTRACT/ORDER NUMBER / 10B. DATED *(SEE ITEM 13)*
	[X]	N6274227R1801 12 Nov 2026	
	[ ]		

CODE	FACILITY CODE

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

[X] The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers [X] is extended. [ ] is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

See Section G - Contract Administration Data

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
[ ]	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
[ ]	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
[ ]	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
[ ]	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor [ ] is not [ ] is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

See Schedule

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
15B. CONTRACTOR/OFFEROR *(Signature of person authorized to sign)*	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*	16C. DATE SIGNED

Previous edition unusable

STANDARD FORM 30 (REV. 11/2016)
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SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Block 14 (Description of Amendment/Modification): PLEASE REVIEW THE AMENDMENT, COMPLETE BLOCKS 8 AND 15A THROUGH 15C TO ACKNOWLEDGE RECEIPT AND SUBMIT WITH YOUR PROPOSAL.

The following items are applicable to this amendment:

A. Provide Government responses to questions/clarifications received in response to the solicitation. See attached questions and answers for Amendment 0001.

B. The following sections of the solicitation have been revised. Changes to each section are annotated in track changes.

(1) Section C
(2) Section G
(3) Section I
(4) Section L
(5) Section M
(6) Attachment J-2
(7) Attachment J-13
(8) Attachment J-14
(9) Attachment J-15
(10) Attachment J-16
(11) Attachment J-17
(12) Attachment J-21

C. The proposal due date has been extended to 2:00 PM, HST on Monday, 7 December 2026.

D. All other sections/attachments remain unchanged.

Section A - Solicitation/Contract Form

The following changes have been made:

INFORMATION	FROM	TO
Response Due Time	12:00 AM	02:00 PM
Response Due Date	23 Nov 2026	07 Dec 2026

Section C - Description/Specifications/Statement of Work

Miscellaneous text in this section has been modified to:

Contents
1.0 GENERAL
1.1 GENERAL REQUIREMENTS
1.2 LAWS, REGULATIONS, AND REFERENCE DOCUMENTS
1.3 REGULAR WORKING HOURS
1.4 HOLIDAYS

2.0 GOVERNMENT FURNISHED DATA

3.0 SPECIFIC TASKS
3.1 PROGRAM MANAGEMENT AND COORDINATION
3.2 SCIENTIFIC FIELD WORK AND ASSOCIATED ANALYSES
3.3 SUPPORTING SERVICES AND TECHNICAL ANALYSES
3.4 BIOSECURITY AND ACQUATIC INVASIVE SPECIES MANAGEMENT
3.5 INTEGRATED NATURAL RESOURCES MANAGEMENT PLANS (INRMPs)
3.6 NEPA, ENVIRONMENTAL PLANNING AND SUPPORTING STUDIES
3.7 GIS MAPPING
3.8 MISCELLANEOUS MARINE RESOURCE SERVICES

4.0 PROFESSIONAL STANDARDS AND PROCEDURES
4.1 GEOGRAPHICAL INFORMATION SYSTEMS (GIS)
4.2 LEGIBLE AND ACCESIBLE DATA
4.3 OBJECTIVE AND DISPASSIONATE REPORTING
4.4 MINIMUM PERSONNEL REQUIREMENTS
4.5 STATISTICAL METHODS AND PROGRAMS
4.6 ELECTRONIC GRAPHICS

5.0 HEALTH AND SAFETY
5.1 DESCRIPTION
5.2 REGULATIONS
5.3 EXPLOSIVE SAFETY
5.4 IMPLEMENTATION
5.5 REPORTING OF ACCIDENTS
5.6 HEALTH AND SAFETY MANAGER
5.7 PROTECTIVE EQUIPMENT FOR GOVERNMENT VISITORS

6.0 STIPULATIONS

7.0 CONTRACTOR SUBMITTALS
7.1 SURVEY PLAN OR WORK PLAN
7.2 PROGRESS REPORT
7.3 DRAFT SURVEY REPORT
7.4 FINAL SURVEY REPORT
7.5 REPORT FORMAT

8.0 CONTRACTOR QUALITY CONTROL
PART I - THE SCHEDULE

SECTION C: DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

1.0 GENERAL

1.1 GENERAL REQUIREMENTS. The Contractor shall provide marine resources management services throughout the Naval Facilities Engineering Systems Command (NAVFAC) Pacific area of responsibility (AOR), and other areas in the NAVFAC AOR worldwide as needed. The majority of the work is expected to occur in Hawaii, Guam, and the Commonwealth of the Northern Mariana Islands (CNMI). The contractor may also, on occasion, be tasked to provide services described herein to any Department of Defense or other Federal Agency Worldwide. The Contractor shall provide all labor, transportation, tools, equipment, materials, supplies, supervision, coordination, and management necessary to provide safe and effective ~~natural~~ marine resources management services within the NAVFAC Pacific AOR.

1.2 LAWS, REGULATIONS, AND REFERENCE DOCUMENTS. The Contractor shall execute each Contract Task Order's (CTO) request in compliance with all references in Attachment J-1 and other laws, rules and regulations as applicable to each project. The Contractor's personnel performing all contract services shall meet the minimum education and experience qualifications described in Attachment J-2 and as specified in each

CTO.

1.3 REGULAR WORKING HOURS. The Government's regular working hours vary by activity and are normally between the hours of 7:00 a.m. and 4:30 p.m., Mondays through Fridays except Federal holidays and other days specifically designated by the Contracting Officer.

1.4 HOLIDAYS. Federal holidays are as follows: New Year's Day, Dr. Martin Luther King Jr. Birthday, Presidents Day, Memorial Day, Juneteenth Holiday, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day.

2.0 GOVERNMENT FURNISHED DATA

Pertinent data in possession of or readily available to the Government, but not to the Contractor, that is needed and requested by the Contractor to perform the work, will be made available to the Contractor, subject to security restrictions if applicable. The Contractor shall ensure a competent and knowledgeable staff is assigned to interpret and utilize the information furnished. Government furnished data shall be returned to the Government no later than the completion of the task order or contract.

3.0 SPECIFIC TASKS

The general scope of work is to conduct marine species monitoring and habitat mitigation services. Baseline data collection and monitoring needs vary by region, depending on the current level of knowledge and data availability. The contractor must be capable of providing, procuring, or sub-contracting all personnel, permits, equipment, materials, facilities, and management services necessary to support multiple concurrent field studies (typically ten or more) across several geographical areas; performing data analysis and reporting of results; and conducting program administration, budget tracking, sub-contractor management, and general program oversight. Successful candidates will possess high levels of experience in both project management and technical field skills, as well as have significant experience with and access to a broad pool of researchers and equipment to meet the program needs.

Marine resources management services required under this contract are tasks commonly associated with the monitoring, management, and protection of biological resources in marine and nearshore environments. Many of the tasks result from the issuance of permitting requirements or impact analysis within Endangered Species Act (ESA) Biological Opinions, National Environmental Policy Act (NEPA) documents, Magnuson Stevens Fishery Conservation and Management Act (MSA) Essential Fish Habitat (EFH) Assessments or an installation's Integrated Natural Resource Management Plan (INRMP). The INRMP is a planning tool and explains the military installation's base-wide conservation program.

The Contractor shall be responsible for obtaining any necessary Federal, State or Territorial government permits and work plan approvals to conduct the services required in the CTO. Permits may include, but are not limited to, 10(a)(1)(A) permit(s) for threatened and endangered species. Copies of permit(s) shall be submitted to the task order contracting officer representative (TOCOR) prior to initiating threatened/endangered species inventory /surveys or, as practicable, copies of permit(s) shall be provided with the submittal of the draft work plan.

CTO solicitations will be performance based, describing the requirement in terms of desired outcome with provision of precise details and/or scientific objectives of work to be done. The contractor shall provide access to professional expertise, research facilities, equipment, tools, instrumentation, materials, labor, supervision, and transportation to provide marine resources monitoring and program management services described herein. These services may include and are not limited to marine resource and biological services in accordance with National Marine Fisheries Service (NMFS) and U.S. Fish and Wildlife Service (USFWS) regulations, as well as regulations from other federal and state agencies to include but not limited to field surveys, consultations, and general studies related to the following resources: marine mammals, sea turtles, fish, marine invertebrates, marine habitats, shorelines, coastal zones, threatened and endangered species, and other marine resources. Specialized services may include, but are not limited to, habitat restoration, coral translocation, orthomosaic images and analysis, fish surveys, coral habitat stabilization, visual surveys (e.g. aerial, shipboard, and land-based), passive acoustic monitoring, tagging and tracking, behavioral monitoring, biopsy sampling, photo identification, data management, and coordinating/managing complex research projects and programs related to these services and requirements. The services may also include preparation of management plans and reports such as Marine Mammal Protection Act (MMPA) authorization requests, ESA Biological Assessments, and EFH Assessments. Any or all of the above services may be required during the term of this contract.

The following are major categories of tasks required under this contract, but are not intended to represent all of the types of services which may be requested. The specific services and objectives will be detailed in the performance work statement (PWS) contained within each task order.

3.1 PROGRAM MANAGEMENT AND COORDINATION. The primary contractor will be responsible for management, coordination, and oversight of Navy-wide monitoring efforts. In support of this initiative, the contractor should be prepared to establish, manage, and coordinate multiple monitoring efforts simultaneously across broad geographic regions of the Pacific Ocean. To successfully accomplish the objectives and requirements of Navy permits and authorizations, the contractor is expected to assemble and/or have access to a large team of researchers and scientists with extensive experience developing and performing complex studies of marine species including bioacoustics, behavior, ecology, density/abundance, and habitat use. Expertise in identifying and working with species from both Atlantic and Pacific oceans will be required, and previous experience conducting monitoring and research on Navy ranges or installations is highly desired. The contractor is expected to maintain physical office locations in Honolulu, Hawaii.

3.1.1 COORDINATION OF MONITORING PROJECTS AND SUBJECT MATTER EXPERTS.
The scope and magnitude of marine resources tasks under this contract requires significant collaboration among universities, research institutions, and other regional marine scientists, as well as potential leveraging of efforts and resources from a variety of federal and state agencies. The contractor is expected to effectively communicate and work collaboratively with various scientific organizations and individuals, and facilitate coordination among these groups to provide required services and products.

The Contractor shall conduct coordination meetings and prepare minutes as required by the CTO. Coordination meetings may include, but are not limited to, project kick-off meetings, team meetings, site visits, and project report meetings. The Contractor will contact the TOCOR to coordinate and arrange meeting dates, venue, and agenda. Coordination meetings are intended to be working-level meetings with the purpose of tracking progress, exchanging information and identifying data needs, discussing requirements contained in the CTO, and obtaining copies of existing environmental planning documents, past surveys, and other documents to be referenced. Contractor may also request that the TOCOR authorize

meetings to problem solve or fix coordination issues. Minutes shall include, but are not limited to, attendees, relevant discussion topics, decisions, and action items.

3.1.2 DATA MANAGEMENT. Large quantities of data (e.g., visual observation, passive acoustics, ecological, and environmental) will be collected and generated through various monitoring efforts. It is essential that data be organized, cataloged, and stored in accordance with established protocols to facilitate analysis and meet reporting requirements. Data from visual and passive acoustic surveys may need to be processed and prepared in specific formats to be submitted to existing databases such as OBIS-SEAMAP. Tracking and movement data from tagging studies must be managed efficiently and contributed to the Animal Telemetry Network, or integrated into other systems developed specifically to manage marine resource and monitoring data. The contractor shall establish protocols to ensure that all data and information generated under this contract is efficiently cataloged and managed in order to facilitate analysis and reporting as well as to ensure consistency among individual monitoring efforts. The contractor shall be prepared to supply copies of all data, products, and deliverables (MS Excel, MS Access, other databases, GIS, etc.) to Navy technical representatives involved with the monitoring program in a timely manner as required.

3.1.3 ANALYSIS AND REPORTING. Results of monitoring efforts will need to be analyzed appropriately and reported in a format (i.e., written reports, tables, figures, maps, databases, etc.) consistent with requirements established through coordination with the TOCOR. Data analysis may include, but is not limited to, the following: assessment of observation data for trends in species health, distribution and abundance; evaluation of acoustic, behavioral, and tagging data to examine potential changes in animal behavior; assessments of mitigation and monitoring effectiveness; as well as addressing other questions that may be raised as part of the Navy's environmental compliance and monitoring program.

Periodic, short-timeframe reports may include summaries of field monitoring effort and preliminary data/results immediately following individual monitoring events such as "quick-look" summary reports. All reports and deliverables will be prepared in standard MS Office format for both draft review and final version, as well as in Adobe pdf for final distribution. These reports will be prepared for audiences including the Navy and regulatory agencies such as NMFS, as well as the general public.

3.2 SCIENTIFIC FIELD WORK AND ASSOCIATED ANALYSES. The contractor shall be responsible for performing and/or coordinating multiple monitoring elements designed to support the Navy's short and long-term monitoring objectives. Specific monitoring activities under this Contract may include, but are not limited to the following sections.

3.2.1 VISUAL SURVEYS. The primary purpose of visual surveys is to monitor, locate, and report on the distribution, numbers, and behavior of marine species. Surveys may support active Navy training exercises by providing before, during, and/or after monitoring and may also be conducted for more synoptic purposes such as establishing spatial-temporal distribution, abundance, and habitat associations. Surveys may be conducted from vessels, aircraft, UAVs, and land in a number of formats appropriate to the specific purpose including systematic line-transects and focal follows. It shall be the responsibility of the contractor to ensure that all necessary safety regulations are followed and appropriate permits have been obtained.

3.2.2 DIVING AND MARINE RESOURCE SURVEYS. Contractor shall perform dive surveys for marine organisms and habitats, to include benthic organisms on natural and man-made surfaces, threatened and endangered species or species of concern, critical habitats, and EFH. Marine species to be surveyed may include but are not limited to coral, seagrass, sponges, biofouling communities, oysters, sea turtles, seals, marine mammals, and other important organisms relative to EFH, and the ESA and the MMPA. These surveys would support ESA, EFH, and Sikes Act requirements. Survey areas may include the Outer Defensive Sea Area, any harbor or near shore areas including some locations where no benthic data exists or for which updated survey data are required to support the planning process for Navy or DoD actions. The Contractor shall propose survey methodology and data collection and analysis techniques to the TOCOR prior to field work or as specified by the CTO.

3.2.3 MARINE SPECIES OBSERVERS. Monitoring obligations may require trained marine species observers. For example, marine species observers may be stationed onboard Navy ships during a sampling of training exercises for the purpose of providing detailed data on encounters with marine species including species identification and behavioral observations. In addition, marine species observers may be required to keep constant vigilance for the presence of ESA-listed marine species during in-water construction activities, such as vessel operations, dredging, operating pre-drilling and pile driving equipment, and deployment of the silt curtain, anchors, or mooring lines.

Competent observers will be able to identify marine species, at minimum, to type of animal (e.g. shark, seal, dolphin, whale, turtle, ray, etc.), if sightings are brief or viewing conditions are poor, or to species if positive identification is possible. The observers will understand marine species behavior enough to be able to observe direction of movement, know diving patterns, and be able to determine when an observed species has departed or remained close to the project area. The observers will know enough about evaluating group size to state with high certainty how many animals were observed when they are seen in a group.

3.2.4 PASSIVE ACOUSTIC MONITORING. Passive acoustic monitoring will be performed either in coordination with other monitoring techniques or as a primary means of monitoring for the presence of marine mammals, as well as anthropogenic sound sources such as pile driving, sonar and explosives. Acoustic monitoring may be accomplished through a variety of real-time and archival methods including, but not limited to, deployment of moored autonomous instrument packages/buoys, towed passive acoustic arrays, free-floating sensors such as sonobuoys, autonomous underwater vehicles and gliders, and instrumented ranges. Acoustic monitoring may be used as a means of complementing visual observation data by providing real-time monitoring capabilities below the surface and/or during poor sighting conditions (e.g., weather and daylight limitations) or provide continuous longer-term monitoring capabilities through post-analysis of recordings at specific fixed locations.

In addition to collecting passive acoustic data, access to individuals with extensive experience in developing analysis protocols, detection, classification, and localization algorithms, and conducting sophisticated, complex analysis of passive acoustic data will also be required. Primary investigators with considerable previous experience reviewing and identifying recorded marine mammal vocalizations, acoustic impacts to ESA and MMPA animals from construction activities, underwater acoustic propagation, digital signal processing, automated detection, programming, and potentially means to work with classified data, are also required.

3.2.5 MARINE SPECIES TAGGING AND TRACKING. Marine species tagging and tracking will be performed either in coordination with other monitoring techniques or as a primary means of monitoring movements and behaviors of marine mammals, fish, and sea turtles. Tagging data can provide information about dive profiles, habitat utilization, large- and fine-scale movements as well as many other aspects of an individual's life history and ecology. Experts that have experience in the application of various tagging methods will be required, as well as individuals who are

trained in the processing and analysis of data streams generated by various tag technologies. Specific expertise using a variety of tag types and associated attachment methodologies is necessary to evaluate the best use of tagging assets.

3.2.6 PHOTO IDENTIFICATION. Photographic identification of individual animals may be performed in coordination with other monitoring techniques as a means of cataloging the presence of marine mammals and creating a photographic database to analyze population parameters. Undertaking photo-identification studies will require the use of experienced photographers who have worked with wildlife or other fast-moving subjects. Expertise in photo-matching, the use of automated photo-identification software, and photo catalog management may also be required to analyze and report results.

Image analysis may also be performed to analyze coral reef species, evaluating factors such assize class, bleaching, living tissue coverage, and other biodiversity indicators. Orthomosaic or photogrammetric imagery should include a size reference (ruler) and color scale (such as a coral health chart). These images enable long-term comparison across different sites and may be incorporated into benthic surveys, translocations, monitoring studies, or other reef-related studies.

3.2.7 BEHAVIORAL STUDIES. Behavioral studies may be performed in coordination with other monitoring techniques as a means of assessing the effects of exercises and other stressors on the normal behavior of marine mammals and sea turtles. Observations of behaviors will be made through analysis of visual, tagging, and passive acoustic data. Visual survey methodologies may include focal follows, continuous observations, and other standard surveillance techniques. A variety of platforms can be utilized to observe behavioral patterns such as shore-based, ship-based, and/or aerial observations. Tagging, remote biopsies or passive acoustic data can also be used to interpret behavior (e.g., dive time or patterns, habitat utilization, stress hormones, swim speed, and direction). Implementation of controlled exposure experiments and analysis of incidental exposures is expected to be a considerable focus of the monitoring program.

3.2.8 HABITAT RESTORATION. The contractor may offset unavoidably lost ecosystem function and services provided by coral and other benthic biota through habitat conversion and ecological uplift at or near to mitigation sites. By restoring the benthic habitat at mitigation sites, the contractor will be performing habitat improvements for the invertebrate community that will restore the site to a level similar or equivalent to nearby areas where coral naturally occurs. The potential habitat restoration actions that will compensate for the functions and services that will be unavoidably lost from the permanent removal of corals and the benthic community may include (but is not limited to):

- Remove anthropogenic debris scattered within the restoration area prior to stabilization
- Stabilize the substrate to create a consistent, stable surface to which marine fauna may attach and thrive
- Increase rugosity and habitat complexity on the newlystabilized area on seafloor
- Develop methods to optimize placement and stability by working with coastal engineers to determine best methods to withstand current and wave stresses
- Consider new and innovative technologies to optimize habitat uplift and transplant survival
- Design a habitat restoration plan to ensure optimal and available habitat to potentially receive future coral transplants.

3.2.9 CORAL TRANSLOCATION. The Contractor shall collect appropriate, healthy coral colonies that meet the translocation criteria (as in the U.S. Coral Reef Task Force and as approved by the Navy) and transport them to an adequate, Navy-approved coral recipient site. The contractor shall prioritize collecting larger coral colonies (greater than 10 cm) and species suitable for translocation. Prior to coral removal, contractor divers will inspect each coral colony for potential signs of disease, predation, recent mortality or tissue paling, thereby ensuring the translocation of only healthy colonies that are not pale or bleached. This will ensure that the less abundant and smaller colonies are completely removed from the site prior to the movement of the larger species. All encrusting corals are considered as an unavoidable loss because their encrusting morphology is unable to be successfully translocated, are typically very small, and provide limited ecological services and function, unless the entire substrate on which they exist can be moved. Additionally, all corals less than 10 cm, regardless of species, are also considered as an unavoidable loss due to their inability to survive the translocation.

During the coral translocation, the Contractor will implement Navy-approved BMPs, including avoidance of physical contact with organisms not transplanted (especially coral). The Contractor will stabilize and secure materials that are staged on the bottom, while also avoiding movement during inclement weather. The Contractor will use experienced coral biologists for the coral transplantation, especially divers who are experienced in translocating corals and knowledgeable about the risks of disease to damaged corals. To the best of their ability, the divers will avoid exposing corals directly or indirectly to toxicopathological agents. All divers and crew will wear gloves and minimize contact with living coral tissue. Divers and crew will also enact appropriate gear and equipment maintenance to minimize potential transport of unwanted species and diseases.

Translocation may require a temporary coral cache site. Divers may initially concentrate on coral collection and movement of the colonies to the coral recipient site to build-up a stockpile or cache of coral colonies for placement and attachment. A large enough coral cache or backlog of colonies may be maintained at the coral recipient site to allow several days of coral reattachment activities without the need to bring additional colonies. The cache area shall not negatively impact the existing current conditions at the recipient site.

Prior to attachment, divers shall gently clean the corals of biofouling organisms (such as sponges, tunicates, and bivalves), thus maximizing the bonding ability of the cement to the base of the coral and promoting the coral health. Colonies of highly branching species often have individual branches that fracture from the main colony. If chosen for transplantation, divers shall keep the detached individual branches with the parent colony during transport to the recipient site. During the reattachment process, divers shall cement the fractured branches closely together with the parent colony, creating a distinct cluster. The Navy recommends keeping branches with the parent colony within all practical means, but this is not a requirement. The divers shall prepare a final inventory and assessment of all translocated corals, including species, orientation, maximum length, and width perpendicular to the axis of maximum length.

3.2.10 ANOMALY AVOIDANCE SURVEYS. The Contractor may undertake an anomaly avoidance survey of coral removal and mitigation areas. Unexploded ordnance (UXO) qualified divers (per DDESB Technical Paper 18) will perform anomaly avoidance through an instrument-aided, visual inspection of the mitigation areas. Depending on the amount of metallic debris submerged, the Navy may or may not anticipate finding munitions and explosives of concern (MEC) or material potentially presenting an explosive hazard (MPPEH). The UXO-qualified divers will survey the corals and the benthic substrate to which they are attached. Structures or anomalies that cannot be confirmed to be non-MPPEH will be clearly marked, and these corals will remain in place. Structures and/or anomalies that are confirmed non-MPPEH (e.g. pilings, railways, etc.) may have coral removed from

them.

During the anomaly avoidance surveys, the team will use a geo-referenced camera for photographing significant anomalies with GPS data, with an accuracy of 1-3 m. Divers will survey the coral removal and mitigation areas by swimming along a transect that covers an area of approximately 2-3 m in width while recording the track and noting any anomalies. Divers will use visual inspection procedures with assistance from adequate metal detectors while using a navigational system to track their movement. Divers will use appropriate equipment to search for and quantify any metal debris. The diver will have topside communication with a recorder who will describe anomalies, size, surface/subsurface, and any physical description of material identified. With the geo-referenced photos, the contractors will prepare a final map showing the locations of anomalies and observations, as well as a final inventory/spreadsheet of metal objects found with time and date stamps, GPS coordinates, and diver notes.

If divers discover MEC and/or MPPEH while employing anomaly avoidance techniques, the divers will avoid the item and report its location and description to the responsible Explosives Safety Officer and the COR. If appropriate, the divers may request an emergency response from the cognizant Explosive Ordnance Disposal detachment. All personnel will receive MEC awareness training, including Recognize, Retreat, and Report procedures, prior to performing any work on-site.

3.3 SUPPORTING SERVICES AND TECHNICAL ANALYSES.

3.3.1 EVENT RECONSTRUCTION AND ENVIRONMENTAL DATA INTEGRATION. In order to assess potential behavioral responses to active sonar and underwater detonations, it will be necessary to correlate marine mammal movements and behaviors with Navy training data including active sonar use and ship tracks. These data will likely be sensitive and may be classified. This analysis will provide a key component of interpreting the monitoring data in an operational context. Methods for this analysis and reconstruction will need to be developed with Navy operators and adapted as data needs require. Analysis will need to be crafted to integrate data from varied sensors used for monitoring including vertical and horizontal movements from tags, passive acoustic detections, behavioral observations from visual observers, and operational data related to the movements and actions of navy assets. Analyses involving operational data may be restricted to classified environments and will require an appropriate level of clearance for both facilities and personnel involved.

3.3.2 ECOLOGICAL ANALYSIS. In order to provide an integrated natural resources perspective relative to monitoring and management services, studies to enhance the understanding of ecosystem structure, function, and services may be required. These may include, but are not limited to, tropical coral reef and temperate ecosystem studies related to the following topics.

- Habitat structure and mapping: Substrate type, water depth and current speed, and spatial and temporal complexity of physical habitat;
- Water quality: Temperature, sedimentation, turbidity, dissolved oxygen, salinity, organic and inorganic chemicals, total suspended solids, and nutrients;
- Flow regime: Water direction, volume, and flow timing;
- Food (energy): Type, amount, and size of organic source particles entering the ecosystem; seasonal pattern of energy availability; and light intensity;
- Reproduction: Fecundity, settlement, recruitment, and persistence over time;
- Biotic interactions: Changes in competition and predation stimulated by fishing, disease, parasitism, mutualism, and introduction of alien taxa;
- Biological assessments: Surveys of the distribution, diversity and abundance of organisms; assessments of community and assemblage structure, demographics, taxonomic identification and composition, individual condition, and biological processes;
- Biochemical and genetic analysis: species identification, ecotype or biotype identification, detection of stress indicators, and eDNA analysis.

3.3.3 OUTREACH. In order to make the public and other stakeholders aware of the broad range of activities which the Navy engages in on behalf of marine resource monitoring and management, presentations and graphic displays (brochures, pamphlets, posters, etc.) for various audiences may need to be prepared. The contractor may be required to prepare items such as, but not limited to, brochures, guides, slides, overheads, and computer presentations to support reporting requirements or facilitate dissemination of information and data. The contractor will also be expected to support maintenance of the monitoring program's online web portal. This will include expertise with web design and programming, content management, social media management, and interactive data presentation that supports dissemination of data, information, reports, and other documents to the general public as well as regulators and specific stakeholders.

Educational outreach tasks encompass a variety of outreach activities and resources designed to bring awareness to ~~natural~~ marine resources management stewardship and invasive species issues. Target audience may include, but is not limited to, the general public, contractors, active duty DoD members and their families, civilians, and other workforce interacting with the DoD. The Contractor may be required to prepare outreach material in the form of websites, information kiosks, trail signs, warning signs, information signs, brochures, guides, slides, posters, flyers and computer presentations.

3.3.4 MISCELLANEOUS MARINE AND BIOLOGICAL RESOURCE SURVICES. The contractor may be requested to provide miscellaneous biological resources planning, evaluation, management, and related services that may be required of the Navy as a condition of compliance with federal natural resources regulations and Navy natural resources policies. These services may include, but are not limited to, the preparation of assessments, evaluations, engineering evaluations, maintenance plans, management plans for conservation areas, baseline assessment surveys, training programs and workshops, and compliance assistance.

3.3.5 BIOMONITORING. This task may include but is not limited to biological monitoring to identify, flag, and record species identified in the CTO. GIS track logs may be required to document survey areas.

3.4 BIOSECURITY AND ACQUATIC INVASIVE SPECIES MANAGEMENT. Biosecurity refers to measures aimed at preventing the introduction and/or spread of harmful organisms. This task refers to all aspects of biosecurity related to military construction, training and other proposed DoD actions. The Contractor may be required to evaluate military construction and training missions for invasive species incursion risk probabilities, in addition to identifying mitigation actions, which can be taken to reduce such incursion risk. Other risk analysis and invasive species management guidance that the Contractor shall prepare may include: rapid response plans, pathway identification, cost benefit analysis of different incursion mitigation, and analyzing the efficacy of existing plans, biosecurity measures, and programs. The Contractor shall also place a focus on educational outreach about biosecurity for the general public, Contractors, active duty DoD members, civilians, and other workforce interacting with the DoD.

This task refers to a variety of management activities related to the control or eradication of aquatic invasive species. Tasks may include but are not limited to identifying treatment methods for target aquatic invasive plant/animal species occurring on DoD installations. The Contractor shall utilize literature and lessons learned from the applied biologists in the region, as it applies to identifying the most effective control or eradication tool for the target. All compound and delivery techniques shall abide by current EPA labels. Target aquatic invasive species would include but are not limited to: octocorals, sea anenomes, orange keyhole sponge or aquarium fish species. In the event that the removal of aquatic invasive species via mechanical method is the preferred prescription, the Contractor shall provide the required equipment and qualified equipment operators/technicians to meet the requirements as specific in the CTO.

3.5 INTEGRATED NATURAL RESOURCES MANAGEMENT PLANS (INRMPs). This task may include but is not limited to the development and preparation of an installation's new INRMP, or an update or revision to an existing INRMP. An INRMP supports the environmental reviews of the installation's military projects and their compliance with all applicable Federal, State and Local statutes and regulations, DoD policies, instructions and guidance. An INRMP will include identification of significant natural resources, recent studies on the resources, and an inventory of these resources, as well as the installation's proposed projects over a five-year period. INRMPs shall follow all Navy and DoD guidance and any other applicable service specific INRMP policies related to preparation of INRMPs. Natural resources data shall be incorporated into a geographical information system in accordance with requirements in the CTO.

3.6 NEPA, ENVIRONMENTAL PLANNING AND SUPPORTING STUDIES. This task refers to the preparation of NEPA and other Environmental Planning studies and documents. Contractor tasks may include but are not limited to preparation, updating, and review of National Environmental Policy Act (NEPA) documents in support of ~~natural~~ marine resources management projects or actions. NEPA documents prepared may include Record of Categorical Exclusions (RCEs), Environmental Assessments (EAs), or Environmental Impact Statements (EISs). The primary tasks anticipated under this contract are the preparation, update, and review of RCE or EA. Secondary tasks may include, but are not limited to, the development or review of Endangered Species Act (ESA) Section 7 Biological Assessment (BA) or Biological Evaluation (BE) (see Attachment J-7), Essential Fish Habitat Assessments, and Coastal Zone Management Act (CZMA) filings and preparing or updating flora/fauna inventories, soils conservation studies, and environmental outreach materials. Additionally, the Contractor may be required to perform ancillary work involving word processing, graphics/GIS products/maps, reproductions, manuscript editing, and other services related to NEPA documents as directed in the CTO.

3.7 GIS MAPPING. The Contractor shall provide all equipment and service required to conduct photographic surveys and mapping services to document significant marine resources, including but not limited to endangered species locations or critical habitat, essential fish habitats, coastal areas of concern, and marine management sites. Support services for photogrammetrically-derived mapping include: digital ortho-photography; RTK GPS/conventional survey crews to locate endangered species locations and other significant marine resources requiring survey-level accuracy of location for photogrammetric capture. The Contractor may also be required to develop Spatial Data Standard (SDS) compliant GIS vector data files of digitized planametric features captured from ortho photos, and convert AutoCADD files to SDS compliant datasets using ESRI compatible products (ArcGIS). If drones are used for aerial photography of DoD installations, the Contractor will be required to meet specific security restrictions and registration requirements prior to operating the drone in restricted areas.

3.8 MISCELLANEOUS MARINE RESOURCE SERVICES. The Contractor may be requested to provide miscellaneous marine resources planning, evaluation, management, and related services that may be required of the DoD as a condition of complying with federal natural resources regulations and Navy or other DoD natural resources policies. These services may include but are not limited to preparation of condition assessments, evaluations, engineering evaluations, maintenance plans, management plans for conservation areas, natural disaster preparedness planning database development, erosion surveys, baseline assessment surveys, training programs and workshops and compliance assistance. Biological monitoring may be executed to ensure compliance with environmental laws, Terms and Conditions of Biological Opinions, and avoidance, minimization and mitigation measures included in relevant NEPA documents, Biological Assessments, and Storm Water Prevention Plans. Miscellaneous marine resource services tasks encompass a variety of support services designed to augment marine resource studies and assessments that support the management and stewardship of marine resources.

4.0 PROFESSIONAL STANDARDS AND PROCEDURES

All aspects of work under the contract shall conform to prevailing professional standards and procedures, which include, but are not limited to the following:

4.1 GEOGRAPHICAL INFORMATION SYSTEMS (GIS). The CTO requirements may include the development of a GIS, or integration into an existing GIS, and must use the current version of ESRI ArcGIS used by the Government or as otherwise specified. The Contractor will adhere to report writing and GIS stipulations provided in the CTO into an Enterprise Geodatabase (formerly referred to as ArcSDE), compatible with the geospatial data standards set forth by the Activity (installation). The resulting product shall be in a format that allows the layering and linking of all geographically associated data into a format that includes all databases (e.g., GPS, site numbers, descriptions, analyses, etc.), maps, plan views, profiles, photographs, reference materials, text, geographically referenced aerial photographs, topographic maps, metadata, shape files, polygons, and other documentation, such as user's and technical manuals, data dictionaries, etc., as needed to fully understand the content of the GIS. Digital geographic maps and the related data sets shall be delivered in the format describe in Attachment J-4.

4.2 LEGIBLE AND ACCESIBLE DATA. All data collected shall be recorded in a legible and accessible manner and stored in a relational data base program.

4.3 OBJECTIVE AND DISPASSIONATE REPORTING. Objective and Dispassionate Reporting
Each Task Order under the contract shall be executed and its results reported in an objective and dispassionate manner clearly delineating fact and opinions. Interpretations of, and inferences from data along with assumptions, premises, and reasoning used shall be clearly and explicitly stated. Technical terms shall be used in a way that is consistent with current usage in the professional literature or shall be explicitly defined when introduced in the report.

4.4 MINIMUM PERSONNEL REQUIREMENTS. Personnel employed under the contract shall meet the requirements presented in Attachment J-2, Minimum Personnel Requirements.

4.5 STATISTICAL METHODS AND PROGRAMS. All statistical methods and programs shall be cited and described and data used to derive

statistics that appear in the report shall be included as an appendix so that the results can be replicated.

4.6 ELECTRONIC GRAPHICS. Maps, graphics, and drawings shall be of professional quality and incorporated into the hard copy report and digital deliverable, as required by each task order. The program used to generate these products shall be compatible with Government systems, and products shall be submitted in a manner that enables the Government to reproduce and manipulate the contents. Photographs must be of good quality (minimum resolution of 300 dots per inch (dpi) to be used for identification of species. If the Contractor is not able to obtain good quality photographs of the species in the field during surveys, photographs of that species may be obtained from other sources. In that case, the Contractor must allow the Government to make hard and/or electronic copies of the photographs for non-commercial use in future. Latitude/longitude coordinates and maps of all surveyed locations shall be included in the Draft and Final reports.

5.0 HEALTH AND SAFETY

5.1 DESCRIPTION. This part describes in general terms, the minimum Contractor health and safety requirements associated with the contract. The Contractor shall prepare, implement, and enforce for each site described in contract task orders, a Site Health and Safety Plan (SHSP). The Contractor shall ensure that health and safety provisions are followed by their subcontractors, suppliers, and support personnel.

5.2 REGULATIONS. The Contractor's Health and Safety Program and SHSPs shall comply with and reflect appropriate requirements of the Occupational Safety and Health Administration (OSHA), specifically 29 CFR 1910 (especially 29 CFR 1910.120) and 29 CFR 1926; the U.S. Army Corps of Engineers (COE) "Safety and Health Requirements Manual," EM-385-1-1, latest revision; and any other relevant Federal, State, and local regulations.

5.3 EXPLOSIVE SAFETY. The Contractor, upon discovery of munitions or explosives of concern, propellant, ordnance waste, or pyrotechnic materials larger than 50-caliber rounds, shall cease operations and notify the Contracting officer or designated representative for further directions. When applicable the Contractor shall comply with the applicable portions of DoD 4144.26-M, "Contractors Safety Requirements for Ammunition and Explosives", NAVSEA OP 5, Volume 1, Sixth Revision, "Ammunition and Explosives Ashore Safety Regulations for Handling, Storing, Production, Renovation and Shipping", and NOSSA 8020.15C (or latest version) Explosive Safety Review, Oversight and Verification of Munitions Response in lieu of EM 385-1-1 for safety requirements for all explosive operations.

5.4 IMPLEMENTATION.

5.4.1 CORPORATE HEALTH AND SAFETY PLAN. After contract award, the Contractor will be tasked to submit a current Corporate Health and Safety Plan to the Contracting Officer for review by the Government for use as the Health and Safety Program Plan. Any additions or revisions required as a result of this review shall be made by the Contractor.

5.4.2 SITE HEALTH AND SAFETY PLAN. For each CTO, prepare a written Site Health and Safety Plan (SHSP) that complies with the respective CTO and above referenced regulations (5.2).

5.4.3 SHSP ACCEPTANCE. Acceptance of the Contractor's SHSP is required prior to start of field activities on each contract task order. Acceptance is conditional and will be predicated on satisfactory performance during field activities. No change in the approved plan shall be implemented without written concurrence by the Contracting Officer or designated representative. The Government reserves the right to require the Contractor to make changes in their SHSP and operations as necessary to ensure the health and safety of persons on or near the site.

5.4.4 DIVE PLAN. For each CTO that requires diving (including snorkel, hookah, SCUBA, etc.) a dive plan that complies with the above referenced regulations (5.2) shall be prepared. Depending on the CTO language this may be incorporated into the SHSP (5.4.2).

5.5 REPORTING OF ACCIDENTS.

5.5.1 CONTRACTOR SIGNIFICANT INCIDENT REPORT. In the event of an accident or mishap, regardless of the severity, the Contractor shall notify the Navy technical representative immediately and fill out and submit a Contractor Significant Incident Report on form CSIR-1 to the Contracting officer or designated representative for review within one work day after the event.

5.6 HEALTH AND SAFETY MANAGER. The Contractor shall use a Certified Safety Professional (CSP) by the Board of Certified Safety Professionals or an experienced Certified Industrial Hygienist (CIH) to implement and oversee the Health and Safety Program and to develop, implement, and sign SHSPs. Any changes to the established Health and Safety Program or SHSPs shall be at the direction and approval of the CSP /CIH, with concurrence of the Contracting Officer or designated representative. The CSP/CIH will not necessarily be required to be on-site during remedial activities, but shall be readily available for consultation, when required by the contract or the Contracting Officer or designated representative.

5.7 PROTECTIVE EQUIPMENT FOR GOVERNMENT VISITORS. Maintain on-site protective equipment as specified in each contract task order for use by Government personnel.

6.0 STIPULATIONS

The information developed, gathered or assembled in fulfillment of the requirements of the contract shall not be released in any fashion, verbal or written, by the Contractor, their associates, the subcontractors or their associates, without prior approval of the TOCOR.

The distribution of any material, data or reports collected or prepared in the execution of the contract tasks is limited to U.S. Government agencies and contractors under contract to the U.S. Government. Requests for any material, data, or reports, including reports for distribution to Contractor employees, project participants, subcontractors, and associates, shall be referred to the TOCOR or CO.

All materials generated by the contract are the property of the Government. All material generated and collected in the execution of the contract, including, but not limited to, field notes; photographic negatives, prints, and inventory; specimens; literature; and copies of all written, graphic, and

archival material generated or collected will be submitted to the Government within seven (7) calendar days after completion of each CTO unless otherwise advised by the CO or designated TOCOR.

The Contractor and subcontractors must take appropriate steps to preserve the confidentiality of work assignments and shall exercise care to avoid information from becoming accessible to unauthorized persons. The Contractor shall not engage in discussions or consultations with outside governmental agencies or nongovernmental organizations unless directed to do so by the TOCOR.

Any request to publish information, either entirely or partially shall be delivered to the TOCOR in writing prior to the submittal of any manuscript to publishing company. Permission in writing must first be granted by the Government.

CTOs may require Contractor and subcontractor personnel to visit military areas. Personnel assigned to the project must be able to qualify for access to military areas after appropriate security checks are made. All personnel shall abide by prevailing security requirements during visits to such military property and shall obtain the required permits and passes in a timely manner. The Contractor shall provide the TOCOR with a list of personnel and their social security numbers or other required information in order to allow the Government adequate time to obtain security clearance.

As of September 10, 2018, Contractor access to all Navy and Marine Corps installations will be made only with a Defense Biometric Identification System (DBIDS) credential. All Contractors are to submit a SECNAV 5512/1 Department of the Navy Local Population ID Card/Base Access Pass Registration, to NAVFAC Pacific Base Sponsors who will submit the form to the PMO. Pre-enrollment can also be made on-line at https://www.dau.mil/faq/p/DoD-PKI-Certificates and follow the step by step instructions. The Contractor must bring the two forms of identification used to pre-enroll in DBIDS along with the printed QR code or alpha-numeric pre-enrollment code to obtain their DBIDS credential. The Contractor's photograph and digital fingerprints will be taken during the process. Failure to consent to photography or fingerprinting will result in denial of base access.

The Contractor shall be responsible for the professional and technical accuracy and coordination of all data, reports and other work or materials furnished by the Contractor or the subcontractors under the contract. All errors or deficiencies in assigned work attributable to the Contractor or the subcontractors shall be corrected by the Contractor at no cost to the Government within a reasonable time after discovery.

Oral reports shall be provided to describe progress upon request during the fieldwork and in the event of unusual or unexpected results. In addition, the TOCOR shall be kept informed of progress and problems encountered by the Contractor. The Contractor shall designate an individual who will serve as the point of contact and will be directly responsible for all matters pertaining to the contract. The Contractor upon prior notification and approval of the TOCOR may make direct contacts with other commands and military activities. A brief summary of each contact (oral or written) shall be provided to the TOCOR within one week after the contact is made.

The TOCOR may make field and laboratory inspections and request oral status reports at any time during the course of the TO. The Contractor shall oblige the COR making the inspection.

Should litigation regarding the execution or results of work conducted under the contract occur, the Principal Investigator shall be available to appear as an expert witness of the Government to attest to professional validity of the findings. Compensation for such appearance shall be in addition to the basic services under the contract.

Should the Contractor intend to conduct marine resources management or technical research for another Government agency or private business within the same area the Contractor conducted research for the Government, the Contractor shall notify the TOCOR or the CO of such intended research.

Should the opinion of the Contractor be modified regarding the results of the study, such as the accuracy, validity and integrity of the data, the analyses, interpretative synthesis of the facts and resources addressed in the report submitted to the Government, the Contractor shall notify the TOCOR of these modifications as soon as possible.

The Contractor shall consult with the TOCOR to obtain approval for the staff organization and personnel proposed for each CTO. Changes affected after initial approval must be approved by the TOCOR.

7.0 CONTRACTOR SUBMITTALS.

The standard computing software is Microsoft Office 2010 or later. All documents including the final report shall be provided in Microsoft Word 2010 format or later and Adobe Portable Document Format (PDF). Spreadsheet files shall be provided in Microsoft Excel 2010 format or later. Unless otherwise noted, all submittals shall be generated in English language.

7.1 SURVEY PLAN OR WORK PLAN. Electronic copy of the Draft Work Plan (DWP) shall be delivered to the TOCOR (via email) for Government review and comment as specified in the schedule of deliverables in each CTO, or as agreed upon by the TOCOR. The DWP shall have proper pagination on all pages, and every line of each page shall have been numbered and be properly reviewed for QA/QC. The Contractor may proceed with work once Government comments have been addressed, the final work plan has received approval from the Government, and the TOCOR gives the Notice to Proceed with fieldwork. All versions of the Work Plan (WP) shall include items described in Attachment J-5.

7.2 PROGRESS REPORT. The Contractor will submit Progress Reports (PR) and oral briefings to the TOCOR for each active task order before invoicing, at regular intervals as determined by the CTO. The purpose of these reports and briefings are to provide sufficient information to the Government to show that the work is being performed on schedule and according to the Scope of Work. The nature of these reports and briefings and the method of submittal will be determined for each CTO.

7.3 DRAFT SURVEY REPORT. The Contractor shall produce and submit the Draft Survey Report to the according to the schedule of deliverables in the task order. The report shall contain at least items (1) thru (9) of the report format (see Attachment J-5) and maps of survey sites. Information that can be used to develop effective conservation/management plans for protected species must be included in the report. As part of the summary, the Contractor shall provide maps depicting the project area, location of investigations, and location of resources (if applicable). If stipulated in the CTO, the submittal shall include GIS compatible with the current version of ESRI ArcGIS used by the Government (currently Version 10.5.1) or as

otherwise specified by the TOCOR. Details regarding deliverables including hard copies, electronic copies digital maps, other related data, and text documents would be included in the electronic copies or otherwise specified in the CTO.

7.4 FINAL SURVEY REPORT. Final Reports submitted to the Government shall incorporate all Government review comments from the Draft Report, and shall be submitted to the TOCOR according to the schedule of deliverables in the CTO. The Contractor shall submit hard copies and electronic copies of the report in accordance with Section J-5, with illustrations and graphics in the quantity specified in the Task Order. If stipulated in the CTO, the submittal shall include geographical information systems compatible with the latest version of Arc View GIS, complete with relational databases, photographs, graphics, illustrations, metadata, and directions for use (see Attachment J-4).

7.5 REPORT FORMAT. All "hard copy" deliverables shall be printed double-sided unless otherwise specified. Submittals shall consist of 81/2" by 11" pages with all drawings folded, if necessary, to this size. All pages shall be numbered and of adequate legible quality suitable for reproduction. The report shall be arranged as described in Section J-5. All "electronic copy" deliverables shall be stored in digital format compatible with DoD information systems (e.g., Adobe PDF). All data gathered during the field surveys must be consistent with guidelines provided in Attachment J-4, and must be submitted with metadata and projection files.

8.0 CONTRACTOR QUALITY CONTROL

Contractor performed inspections are independent of those performed by the Government. The Contractor shall perform the inspections prior to requesting acceptance of the work by the Government and shall provide logs which document each weekly or daily inspection, including, but not limited to, comments concerning problems and solutions, task and personnel, project progress, and reviewing and editing efforts. The Contractor will provide the Government access to the logs upon request at any time during the course of a Task Order and the Contractor shall deliver them within five (5) working days of the request. The Contractor's Project Director and the quality control (QC) inspector shall attend pre performance/kickoff meetings. The QC inspector shall also attend meetings with the Contracting Officer and other Government personnel to resolve quality considerations and problems that may arise in the course of the work.

Section G - Contract Administration Data

Miscellaneous text in this section has been modified to:

G1 CONTRACT ADMINISTRATION DATA
The Contracting Officer for this contract is:

Ms. Casey Sugihara
NAVFAC Pacific (CON75)
258 Makalapa Drive, Suite 100
Pearl Harbor, HI 96860-3134

The Contract will be administered by:

NAVFAC Pacific (CON75)
Environmental Contracts Branch
258 Makalapa Drive, Suite 100
Pearl Harbor, HI 96860-3134

NOTE: Other NAVFAC Contracting Officers are authorized to issue contract task orders, modifications, letters or verbal direction to the Contractor. The point of contact for this Contract will be a Contract Specialist/Contracting Officer within the NAVFAC Pacific Contracts Branch.

The Contracting Officer's Representative (COR) is:

--To be filled in at the time contract award.

Payment will be made by:

--To be determined on individual task order.

G2 TASK ORDERS ISSUANCE PROCEDURES

1. GENERAL

a. When the Government requires work under the contract, a Request for Proposal Letter (RFPL) will be issued as appropriate. RFPLs will be accompanied by a Performance Work Statement (PWS) and will normally be issued via electronic mail but may be placed via mail, telephone, facsimile or other means.

b. Contractors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the RFPL by the time specified in the RFPL. Any proposal modification or revision, received at the Government office after the exact time specified for receipt of proposals will be late and will not be considered unless it meets the requirements of FAR 52.215-1.

c. Task orders will be awarded on a DD Form 1155 (Order for Supplies or Services).

d. The Government will not be obligated to reimburse the contractor for work performed, items delivered, or any costs incurred, nor shall the contractor be obligated to perform, deliver, or otherwise incur costs except as authorized by duly executed task orders.

e. Each task order shall include as a minimum:
(1) Date of order.
(2) Contract number and order number.
(3) Contract item number and description, quantity, and unit price or estimat4ed cost.
(4) Delivery or performance schedule.
(5) Place of performance.
(6) Any packaging, packing, and shipping instructions.
(7) Accounting and appropriation data.
(8) Method of payment and payment office.

f. Modifications to task orders will be issued on Standard Form (SF) 30.

g. Contractors may elect not to submit on all task order requirements; however, the contractor must notify the Contracting/Ordering Officer in writing within three (3) business days of RFPL issuance when a contractor elects not to submit on a particular task order requirement and state the reasons why. Failure to provide this notification may impact future consideration for task orders and exercise of an option.

h. In accordance with FAR 16.505(a)(10), no protest under Subpart 33.1 is authorized in connection with

the issuance or proposed issuance of an order under a task order contract except for a protest on the grounds that the order increases the scope, period, or maximum value of the contract or a protest of an order valued in excess of $25 Million. Protests on orders over $25 million may only be filed with the Government Accountability Office, in accordance with the procedures at FAR 33.104.

2. COMPETITION

a. Competition for issuance of task orders is limited to those MAC Holders selected to execute requirements in either the Unrestricted Division ~~(COJ funded projects)~~ or Small Business Set-Aside (SBSA) Division ~~(US funded projects)~~. Small businesses are eligible to compete for all task orders in either Division. If less than two proposals are received from MAC Holders in the SBSA Division, the Contracting Officer may open the competition of the task order to include the Unrestricted Division contractors. The Contracting /Ordering Officer will identify those MAC Holders eligible to compete for any RFPLs issued.

b. Each awardee will be given a fair opportunity to be considered for each task order exceeding $3,000 issued under multiple award contracts consistent with paragraph 2.a above unless the Contracting Officer applies one of the exceptions noted below. Upon receipt of a RFPL, all awardees will be considered equally against the criteria set forth in the RFPL.

c. The Contracting Officer reserves the right to make award of a task order without competition based upon one of the circumstances described below:
(1) The agency need for the services are so urgent that providing a fair opportunity would result in unacceptable delays;
(2) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized;
(3) The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order; or
(4) It is necessary to place an order to satisfy a minimum guarantee.

3. REQUIREMENT FOR PROPOSALS

a. Task orders will be firm fixed price with a specific completion date or performance period and clearly define the specific services to be performed or the performance desired. When options are included in the Schedule, the task order will specify the number of days after award for exercising the options. Each task order incorporates applicable provisions and clauses in the basic contract. All task orders are subject to the terms and conditions of this contract. In the event of conflict between a task order and this contract, the contract will control, except as otherwise noted in the contract documents. The Government reserves the right to incorporate additional clauses, as appropriate, into individual task order RFPLs and awards.

b. Unless otherwise specified in the RFPL, task order proposals must remain valid for 90 calendar days after the last stated date for which proposals may be received.

c. Projects will vary in size and complexity. Information required for technical evaluation will be identified in the individual RFPL and may include the following:

(1) Proposed schedule for completing the work shall be addressed in each contractor's proposal.
(2) Narrative description of how work is intended to be accomplished as stated in the RFP.
(3) Upon receipt of the Contractor's proposal, the Contracting Officer and the Technical Representatives will conduct a comprehensive review and will, either, (1) arrange a time and place to conduct negotiations or (2) issue a CTO based on the statement of work and cost proposal as submitted.
(4) A task order will be issued on a DD1155. The DD1155 will be forwarded to the Contractor for signature by a duly authorized representative of the Contractor. The Contracting Officer will then sign the DD1155 at which time, the Contractor may commence work. On a case by case basis and if determined essential by the Contracting Officer, performance bonds may be required prior to the commencement of the field work (bonding requirements will be identified in the RFPL).
(5) The Contractor shall immediately notify the Contracting Officer, in writing, of any unforeseen conditions.
(6) The Contracting/Ordering Officer may at any time, prior to award of the task order, determine that it is not in the best interest of the Government to issue said order to the Contractor. No liability for costs will accrue to the Government as a result of the Contracting Officer's decision not to issue the task order, e.g. no proposal preparation costs will be paid by the Government.

4. SELECTION CRITERIA

a. Task orders may be awarded on the basis of price only; low price technically acceptable (LPTA), or using the tradeoff process (as described in FAR Part 15). The basis for award will be stated in the RFPL. Whenever possible, award will be made without discussions. If discussions are determined necessary, the Contracting Officer may establish a competitive range if the number of proposals exceeds the number at which an efficient competition can be conducted.

b. Task order price proposals: The RFPL will inform MAC Holders on the level of detail required in their price proposal. The Contracting/Ordering officer may simply require submission of a lump sum amount, a few cost items (similar to the amount of detail requested for the Sample Projects), or on occasion detailed cost and pricing data. Detailed cost and pricing data will not be requested often and will be limited to the more complicated or very large task order projects.

G3 TASK ORDER MODIFICATION PROPOSALS

The following may apply when changes to a task order issued under this contract are required.

(a) The Contractor shall furnish a price breakdown, itemized as required and within the time specified by the Contracting Officer, with any proposal for a task order modification.

(b) The price breakdown will be tailored to each task order modification.

(c) The Contractor may be asked to provide similar price breakdown details to support any amounts to be performed by subcontracts.

(d) The Contractor's proposal shall include a justification for any time extension proposed.

G4 DELEGATION OF AUTHORITY TO ADMINISTRATIVE CONTRACTING OFFICER (ACO)

Each CTO will designate the appropriate ACO.

G5 CONTRACTOR REPRESENTATIVES

The Contractor shall, after award of the basic contract, notify the Government in writing, of the person or persons authorized to contractually and legally bind the Contractor. The Contractor shall include the title of the person or persons and any limitations that apply to the signatory authority.

G6 CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The Contracting Officer will appoint the COR for this contract in writing at time of award.

A Contracting Officer's Representative (COR) is NOT a Contracting or Ordering Officer and DOES NOT have authority to take any action, either directly or indirectly, that would change the pricing, quantity, quality, place of performance, delivery schedule, or any other terms and conditions of the contract (or task order), or to direct the accomplishment of effort which goes beyond the scope of the Statement of Work in the contract (or task order).

The COR is technically responsible for monitoring of contractor performance and is the sole technical point of contact and will be identified on individual task orders.

The Contracting Officer may also appoint, in writing, an alternate COR (ACOR) to perform the responsibilities and functions when the COR is absent.

G7 TECHNICAL DIRECTION

(a) As provided by the contract provision, "CONTRACTING OFFICER'S REPRESENTATIVE (COR)", performance of work under this contract is subject to the written technical direction of the Contracting Officer's Representative (COR), who shall be specifically appointed by the Contracting Officer in writing. "Technical Direction" means a directive to the Contractor that approves approaches, solutions, designs, or refinements; fills in details or otherwise completes the general description of the work or documentation items; shifts emphasis among work areas or tasks; or furnishes similar instructions to the Contractor. Technical direction includes requiring studies and pursuit of certain lines of inquiry regarding matters within the general tasks and requirements in the Statement of Work of the task order.

(b) The COR does not have the authority to, and shall not, issue any instruction purporting to be technical direction which:

(1) Constitutes an assignment of additional work outside the Statement of Work;
(2) Constitutes a change as defined in the Changes Clause;
(3) In any manner causes an increase or decrease in the total estimated cost, Award Fee, or the time required for task order performance;
(4) Changes any of the expressed terms, conditions, or specifications of the task order;
(5) Interferes with the Contractor's rights to perform the terms and conditions of the order, or;
(6) Authorizes the Contractor to incur costs in excess of the estimated cost or other limitations on costs or funds set forth in this contract.

(c) All technical direction shall be issued in writing by the COR.

(d) When, in the opinion of the contractor, the COR or any other Government official other than the Contracting Officer, requests effort outside the existing scope of the contract (or task order), the contractor shall promptly notify the Contracting Officer in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract (or task order) or has otherwise resolved the issue.

G8 TRAVEL COSTS

(a) Travel Policy. Generally the Government will negotiate all allowable, allocable and reasonable travel costs to be incurred by the contractor in performance of the contract/CTO in accordance with FAR Subpart 31.2 and the rules and definitions set forth for temporary duty and local travel in the Joint Travel Regulation (JTR) but not to exceed the amounts authorized in the JTR.

(b) Official Travel.

(1) Temporary Duty (Overnight Stay Required) Beyond 50 Mile Radius. If a temporary duty station to which an employee is required to travel in the performance of this contract is beyond the circular boundary created by a 50 mile radius of the employee's official point of departure, and the period of official travel is greater than two hours more than the employee's regular work day, the cost of transportation and per diem will be negotiated or allowed. Official travel begins at the time an employee leaves his/her home, office, or other authorized point of departure and ends when the traveler returns to his/her home, office, or other authorized point at the conclusion of the trip.

(2) One Day Travel Beyond 50 Miles Radius. When the period of official travel is 24 hours or less, but greater than two hours more than the employee's regular work day, transportation and per diem costs will be negotiated or allowed consistent with company policy but not to exceed the amounts authorized in the JTR. If lodging is not required, the maximum allowable rate will be the meals and incidental expenses (M&IE) rate, prorated as provided in the JTR. If lodging is required, the rules for travel of more than 24 hours apply.

(3) Local Travel (within 50 Miles Radius of Official Point of Departure) or at Temporary Duty Station. Cost of commercial transportation and Privately Owned Vehicles (POV mileage) used in the performance of this contract for local travel or at a temporary duty station will be negotiated or allowed, if approved by appropriate Contractor supervisory personnel as advantageous to the Government. For local travel required in the performance of this contract, transportation costs will be negotiated or allowed for the distance that exceeds the employee's regular commuting distance.

G9 PRE-PERFORMANCE CONFERENCE - CONTRACT TASK ORDER

Prior to commencing work, the contractor may be required to meet with the Contracting Officer and/or designated technical personnel at a mutually agreeable time to discuss and develop mutual understandings concerning scheduling and administering work.

G10 PAYMENT

Payment will be made at the individual contract task order level in accordance with DFARS 252.232-7006, Wide Area WorkFlow Payment Instructions (JAN 2023). DFARS 252.232-7006 will be populated at the contract task order level

Link to payment instructions: https://www.acq.osd.mil/dpdp/dars/pgi/pgi_htm/PGI204_71.htm#pament_instructions

Section I - Contract Clauses

Additional Information/Notes

The following clauses were deleted:

DFARS Clauses Incorporated by Full Text

252.237-7023 Continuation of Essential Contractor Services. (Tailored) (Oct 2010)

CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions*. As used in this clause-

(1) "Essential contractor service" means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) "Mission-essential functions" means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission essential functions. These services are listed in attachment Section C.

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this section during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Miscellaneous text in this section has been modified to:

SECTION L
INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

L.1 PROPOSAL SUBMISSION REQUIREMENTS

a. All proposals shall be submitted electronically through PIEE (Procurement Integrated Enterprise Environment) Solicitation Module at the website: https://piee.eb.mil/sol/xhtml/unauth/index.xhtml. The Price Proposal (Volume I), Technical Proposal - Factors 1, 2, 3, and 5 (Volume II), and Technical Proposal - Factor 4 and Subcontracting Plan (Volume III) shall be submitted as separate, appropriately named and tabbed electronic files. Each file must include a cover page with the name of the prime contractor, addresses, phone and fax numbers, email addresses, solicitation number, and point of contact. The tab pages and cover pages will not be included in the section count.

Unnecessarily elaborate brochures or other presentations beyond those sufficient to present a complete and effective response to the solicitation, as well as, elaborate artwork, and expensive visual and other presentation aids are neither necessary nor wanted. The Government is not liable for any proposal preparation expenses incurred in response to this solicitation nor any proposal preparation expenses incurred for individual task orders issued under the resultant contract.

(1) Electronic Submittal:

i. Register a PIEE using the PIEE Vendor Registration Guide, provided in Attachment L.1.

ii. Follow the PIEE Proposal Manager, Proposal Manager Functions and Posting Offer Guides, Attachment L.2.

iii. Electronic cost proposal files shall include editable and searchable documents (e.g. Excel files, Word, Adobe PDF) of the supporting cost documentation. Ensure all links to external files from the proposal spreadsheets/formulas have been removed. Excel spreadsheets shall not contain macros, circular references or iterative formulas. If submitting PDF documents with the electronic proposal, the text shall be a font of Arial, 11 point.

iv. Electronic submissions shall be compatible with Windows type CPUs and Microsoft Word 2016, Excel 2016 (file extension shall be .xlsx or .xls), and Adobe Acrobat Software.

b. VOLUME I: PRICE PROPOSAL: Proposals shall be submitted as a separate electronic volume and include a table of contents with the following tabs:

(1) Signed and completed SF33, Solicitation, Offer and Award, with signed Acknowledgement of each amendment;

(2) Offerors shall complete and submit, Sample Project Price Sheet, Attachment J-21. Reference Section M.8 for price factor solicitation submittal requirements;

(3) Information required by paragraph L.4, Pre Award Survey/Responsibility Determination;

(4) Information required by paragraph L.5, Representations and Certifications; and

(5) Information required by paragraph L.6, Teaming/Joint-Venture/Mentor Protege Agreements and Approvals (if applicable).

c. VOLUME II: TECHNICAL PROPOSAL (FACTORS 1, 2, 3, and 5): The non-price proposal for Factors 1, 2, 3, and 5 shall be submitted as a separate electronic volume with a table of contents and tabbed sections. The TECHNICAL PROPOSAL shall include the following: (Reference Section M.8 for technical factors solicitation submittal requirements)

(1) All information required by Factor 1, Experience
(2) All information required by Factor 2, Sample Project
(3) All information required by Factor 3, Safety
(4) All information required by Factor 5, Past Performance

d. VOLUME III: TECHNICAL PROPOSAL (FACTOR 4) AND SUBCONTRACTING PLAN: Factor 4 and the subcontracting plan shall be submitted as a separate electronic volume. (Reference Section M.8 for technical factors solicitation submittal requirements)

(1) All information required by Factor 4, Small Business Utilization and Participation
(2) All information required by the Small Business Subcontracting Plan

SUBCONTRACTING PROGRAM FOR SMALL BUSINESS AND SMALL DISADVANTAGED BUSINESS CONCERNS

In accordance with FAR 52.219-9, Alt II, Section I, other than small businesses shall provide a Small Business Subcontracting Plan. The following guidelines are provided regarding small business targets, which the Naval Facilities Engineering Systems Command has established:

STRATEGIC FOCUS NAVFAC Subcontracting
Small Business 40%
Small Disadvantaged Business 5%
Historically Underutilized Business Zone Small Business 3%
Women-Owned Small Business 9%
Service-Disabled Veteran-Owned Small Business 5%

SUBCONTRACTING REPORTS

In accordance with DFARS 252.219-7996 Small Business Subcontracting Plan (DoD Contracts).
(DEVIATION 2026-O0037), Section (f)(l), a Large Business Contractor shall submit subcontracting reporting using the new Subcontracting Plan Reporting system in SAM.gov.

e. PRICE AND TECHNICAL PROPOSALS:

(1) Proposals must be received through the PIEE solicitation module on or before the hour and date set forth for receipt of proposals. Proposals not received by the specified deadline shall be subject to the provisions of FAR 52.215-1(c), "Late submission, modification, revision, and withdrawal of proposals".
(2) Offerors should submit complete and accurate information. The Government may elect not to request additional information in order to make a contract award.

L.2 INSTRUCTION FOR SUBMITTING QUESTIONS REGARDING SOLICITATION

Questions regarding the solicitation shall be submitted in writing via electronic email to Ms. Rachel Gerakas, rachel.m.gerakas.civ@us.navy.mil and Ms. Casey Sugihara, casey.c.sugihara.civ@us.navy.mil. Electronic mail must be received no later than ten (10) working days in advance of the closing date. Verbal queries will not be entertained.

All questions will be addressed as promptly as possible and will be posted to the website at https://sam.gov.

L.3 AMENDMENTS AND NOTICES TO THE SOLICITATION

Amendments will be posted to the web site https://sam.gov which is the official U.S. government website for people who make, receive and manage federal awards. It is the offeror's responsibility to check the web site periodically for any amendments to the solicitation. All Amendments to the solicitation shall be signed, dated and included with the signed SF33.

L.4 PRE-AWARD SURVEY/RESPONSIBILITY DETERMINATION

The following information shall be submitted as part of the pre-award survey/responsibility determination:

1) Provide name, title, email address, phone number of the person or persons authorized to negotiate and bind your firm. The offeror shall submit a document that appoints, in writing, one or more individuals, by name, each of whom will have full and independent authority to bind the offeror with respect to any act connected with this solicitation, including but not limited to: the submission and revisions of a proposal or proposals by the company, the conduct of discussion or negotiations, the submission of a Final Proposal Revision (FPR), and the execution of a contract and associated documents. Documents of appointment by a supporting resolution of the board of directors in the case of a corporation and by an instrument of similarly binding character in the case of an unincorporated entity.

2) Offeror's Verification that they are current with their submission of the Federal Contractor Veteran's Employment Report (VETS-100 Annual Report and or the VETS-100A Report). Copy of the email confirmation of receipt notification of successful submission of the VETS-4212.

3) As a part of the pre-award survey, the contracting officer will verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i. e., not more than three (3) years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk Assessment (SPRS) (https://www.sprs.csd.disa.mil/) (see DFARS 252.204-7019, Notice of NIST SP 800-171 DoD Assessment Requirements (Nov 2020)) prior to award. At minimum, a current Basic NIST SP 800-171 DoD Assessment is required prior to award.

4) FAR 9.104 requires prospective contractors to demonstrate, among other things, that they have adequate financial resources to perform the contract or the ability to obtain them, capability to comply with the required performance schedule, a satisfactory performance record, and be otherwise eligible to receive an award under applicable laws and regulations. The pre-award survey is not a part of the non-price evaluation. The offeror shall submit the following:

a. Company financial statements (balance sheets and income statements) for past three (3) years.

b. Financial resources available to perform the contract. Submit evidence of availability of working/operating capital that will be used for the performance of the contract. If the offeror plans to rely on financial support from other sources, identify the maximum lines of credit that will be available to include documentation to support the amounts. The maximum lines of credit should be based upon the inclusion of this contract effort. For joint ventures discuss the financial responsibilities among companies and provide same information for each partner.

c. Newly-formed entities (e.g. limited liability companies ("LLC's"), limited partnerships ("LTD's") and newly-created corporate subsidiaries) that are responsible and liable for the contract ordinarily have no record-or an insufficient record-of relevant experience, past performance, and financial capability to support a responsibility determination. In such cases, the offeror may rely on the resources of the LLC member, parent, limited partner, or other entities related to the offeror for responsibility purposes where the offeror submits a guaranty from the entity providing the resources.

d. A list of existing commercial and government business commitments to include contract numbers, names of Contracting Officers, telephone numbers, value of contracts, completion dates and percent complete. If the list of existing commitments is extensive, provide the required information on at least five projects of similar dollar value and a summary of the existing commitments to include number of contracts, total dollar value of all contracts, and total dollar value of work remaining.

L.5 REPRESENTATIONS AND CERTIFICATIONS

See Section K, Special Contract Requirements (COMPLETE ALL PROVISIONS). All offerors shall confirm that they are registered in the System for Award Management (SAM) at www.sam.gov/ and Small Business offerors shall qualify for the size standards set forth by FAR 52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025) / DFARS 252.204-7007, ALTERNATE A (OCT 2023) - NAICS 541620.

L.6 TEAMING/JOINT-VENTURE/MENTOR PROTEGE AGREEMENTS AND APPROVALS (IF APPLICABLE)

When proposing as a joint venture, all members of the joint venture shall sign the SF33 unless a written agreement by the joint venture is furnished with the proposal designating one firm with the authority to bind the other member(s) of the joint venture. In addition, a copy of the joint venture agreement shall be submitted with the proposal. Failure to comply with the foregoing requirement may eliminate the proposal from further consideration. If the joint venture is subject to the SBA Mentor-Protege Program, a copy of the SBA approval of the joint venture arrangement shall be included.

CORPORATIONS, JOINT VENTURES, PARTNERSHIPS, AND OTHER SIMILAR ENTITIES MAY NOT BE A PARTY TO MORE THAN ONE OFFEROR. FAILURE TO COMPLY WITH THIS MAY RESULT IN DISQUALIFICATION OF THE OFFEROR FOR CONTRACT AWARD.

Notes:
1. Definition: "Offeror" typically refers to a single corporation submitting the proposal as a prime contractor, a joint venture composed of multiple organizations submitting a proposal as joint-venture partners or a Limited Liability Company (LLC). In its evaluation of past performance and experience, the Government's evaluation will generally focus on the entity submitting the proposal (single corporation, individual joint venture partners or the LTD or LLC company as identified on the SF33).

2. If proposing as a joint venture, LTD, or LLC, the Offeror shall submit a legally binding joint venture agreement, LTD or LLC Operating Agreement, and/or Teaming Agreement with their proposal that clearly defines the roles and responsibilities of each of the member firms. In addition, the Offer shall include a detailed statement outlining the following terms or percentages where appropriate:

a. The relationship of the team/partners/parties in terms of business ownership, capital contribution, profit distribution or loss sharing.

b. The management approach in terms of who will conduct, direct, supervise, control and the controlling partner's authority to obligate the entity.

c. The structure and decision-making responsibilities of the team/partners/parties in terms of who will control the manner and method of performance of work.

d. Identify the personnel having the authority to legally bind the offeror including the person authorized to sign the SF33 and bonds.

e. Set forth procedures to be followed in the event that the entity is dissolved due to unforeseen circumstances, such as the bankruptcy of a member.

f. A list of partners/parties, to include company names, UEI and CAGE numbers, addresses, points of contact, email addresses, phone numbers and facsimile numbers.

L.7 RESTRICTION ON DISCLOSURE AND USE OF DATA

Offerors or quoters who include in their proposals or quotations data that they do not want disclosed to the public for any purpose or used by the Government except for evaluation purposes, shall -

(a) Mark the title page with the following legend:

"This proposal or quotation includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed--in whole or in part--for any purpose other than to evaluate this proposal or quotation. If, however, a contract is awarded to this offeror or quoter as a result of--or in connection with -the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets];" and

(b) Mark each sheet of data it wishes to restrict with the following legend:
"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal or quotation."

~~L.8 ESSENTIAL CONTRACTOR SERVICES PLAN~~

~~In accordance with DFARS 252.237-7024, Notice of Continuation of Essential Contractor Services, the Offeror shall provide as part of Volume II a~~

~~written plan describing how it will continue to perform the essential contractor services identified in Section C during periods of crisis. The plan shall, at a minimum, address the requirements outlined in DFARS 252.237-7024(b)(1) and (b)(2)(i) through (b)(2)(v). This plan is excluded from the overall proposal page limitation.~~

Section M - Evaluation Factors for Award

Miscellaneous text in this section has been modified to:

M1 PREFERENCE FOR MAKING MULTIPLE AWARDS

This procurement consists of a single solicitation with the intent to award no more than six (6) Indefinite Delivery Indefinite Quantity (IDIQ) type service contracts to the offerors whose proposals, conforming to the solicitation, will be the most advantageous to the Government resulting in the best value, price and technical factors considered. The Government intends to award a minimum of two (2) contracts in each of the two Divisions, unless all successful offerors are small business concerns--which would eliminate the need for two Divisions (see M3 below). The Government reserves the right to award more than six (6) contracts if it is determined to be in the best interest of the Government. Successful awardees (also called MAC Holders) will compete for future work during the term of the multiple award contracts.

M2 MAGNITUDE OF THE ACQUISITION

The estimated workload is a Not-to-Exceed (NTE) aggregate amount of $99 million. These amounts are subject to change based on the needed Marine Resources Technical Services specific tasks ordered by the Government.

M3 BASIS FOR AWARD

1. The contracts resulting from this solicitation will be awarded to those responsible Offerors whose offers, conforming to the solicitation, are determined to be the most advantageous to the Government considering Price and Non-Price evaluation factors. Award may be made to other than the lowest priced Offerors or other than the highest technically rated Offerors. All "Technical" factors when combined are of equal importance to the performance confidence assessment (past performance) rating; and all "Technical" factors and the performance confidence assessment (past performance) rating, when combined are significantly more important than "Price". Business judgments and tradeoffs will be used to determine the proposals offering the "Best Value" to the Government. In determining the best value to the Government, the Government need not quantify the tradeoffs that led to the best value decisions.

2. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal.

3. As set forth in Section H, paragraph H1, this Marine Resource Technical Services MAC will be competed as an unrestricted procurement with a partial small business set-aside. The resulting multiple award contracts will be comprised of two major divisions: An Unrestricted Division established for competing (amongst both large and small businesses) and a partial Small Business Set Aside (SBSA) Division established for competing projects only amongst the small businesses. The selection of the MAC Holders will be made in the manner described below as required by FAR 19.502-3(c)(1) & (2).

a. The contracting officer shall award the non-set-aside portion (Unrestricted Division) using normal contracting procedures.

b. After all awards have been made on the non-set-aside portion, the contracting officer shall negotiate with eligible concerns on the set-aside portion (SBSA Division), as provided in the solicitation, and make award. Negotiations shall be conducted only with those offerors who have submitted responsive offers on the non-set-aside portion (Unrestricted Division).

c. Pursuant to the Small Business Jobs Act of 2010, Section 1331, and the Small Business Administration Final Rule (effective 31 DEC 2013), the set-aside portion will be competed amongst all Small Business Concerns that submitted responsive offers for the non-set-aside portion of the solicitation.

d. While the non-set-aside portion (Unrestricted Division) will utilize normal contracting procedures (as set forth in FAR Part 15), it is possible that one or more of the offerors determined to be the most advantageous to the Government could be small business concerns. If all successful offerors in the Unrestricted Division are small business concerns, the Government may elect not to award additional contracts under the SBSA Division.

M4 INTENT TO AWARD WITHOUT DISCUSSIONS

The Government intends to evaluate proposals and award contracts without discussions with offerors, except clarifications as described in FAR 15.306 (a). Therefore, the Offeror's initial proposal shall conform to the solicitation requirements and should contain the Offeror's best offer from a technical and price standpoint. However, the Government reserves the right to conduct discussions if discussions are deemed necessary.

M5 COMPETITIVE RANGE

If discussions are deemed necessary to maximize the Government's ability to obtain the best value, discussions will be held with those Offerors determined to be within the competitive range. The Government may limit the number of proposals in the competitive range to the most highly rated proposals, considering price and technical factors. In addition, if the Government determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Government may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

M6 ENFORCEABILITY OF PROPOSAL

The proposals must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract or contracts. By submission of the offer, the Offeror agrees that all items proposed (e.g., key personnel, subcontractors, management plan, etc.) will be utilized for the duration of the contract and any substitutions will be equal to or better than, as proposed and accepted for contract award. Any substitutions will require prior Contracting Officer's approval.

M7 EVALUATION FACTORS FOR AWARD

1. The evaluation factors are as follows:

a. Non-Price factors are as follows:

FACTOR 1, EXPERIENCE
FACTOR 2, SAMPLE PROJECT
FACTOR 3, SAFETY
FACTOR 4, SMALL BUSINESS UTILIZATION AND PARTICIPATION
FACTOR 5, PAST PERFORMANCE

b. Price

2. The relative order of importance of the Non-Price evaluation factors are as follows: Factors 1, 2, 3, and 4 are of equal importance to each other, and, when combined are equal in importance to the past performance evaluation/performance confidence assessment Factor 5. When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined are significantly more important than the price factor. The importance of price will increase if the Offerors' non-cost/price proposals are considered essentially equal in terms of overall quality, or if the price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government.

3. TECHNICAL EVALUATION FACTORS (FACTORS 1 - 5).

A. FACTOR 1, EXPERIENCE

(1) This factor considers the breadth and depth of the offeror's experience and expertise in performing the requirements of this solicitation and their ability to recruit and employ qualified Key Personnel.

(2) Solicitation Submittal Requirements:

a. Offerors shall use attachment J-14 to submit no more than five (5) recent relevant marine resources projects that individually or collectively are similar in scope and complexity to the specific tasks described in Section C., paragraphs 3.2 to 3.7. Project information shall be in the format set forth in Attachment J-14 template and clearly indicate which of the Section C Specific Tasks were performed in each contract or task order submitted. Clearly indicate whether the project was performed by the offeror or team subcontractor (see M7.3.A(3)e(5) ~~Note 4 above~~ on applicability of subcontractor experience) and list which of the Section C Specific Tasks were performed in each contract or task order submitted in response to Factor 1. The Offeror shall not submit more than three (3) pages that are single-sided per project.

b. Key Personnel. Key Personnel for this MAC are one Principal and one Project Manager (Biological). See Attachment J-2 (Minimum Professional Qualifications) for the detailed qualifications required for these two Key Personnel positions. Offerors shall use Attachment J-15 to detail experience of the Principal and Project Manager for each specific task described in Section C paragraphs 3.2 to 3.7 of this solicitation. The Offeror shall provide information on a maximum of four (4) recent, relevant projects that were completed by each Key personnel that would demonstrate their project experience. The Offeror shall not submit more than four (4) pages single-sided per Key Personnel. A letter of commitment shall be provided for each proposed key personnel, including subcontractor key personnel, who do not currently work for the Offeror. The letter of commitment shall include the key personnel's role in the contract.

c. Page limit for Factor 1: Experience project information sheets are limited to a total of 15 pages single-sided. Each page will be 8.5" x 11", utilize one-inch or larger margins on all four sides of the page and print type of no less than font size 11. Each page shall be numbered and the page number may print within the margin at the bottom of each page. If the offeror exceeds the page limit, the Government evaluation team will stop reading and will not consider or evaluate any information beyond the page limit.

(3) Basis of Evaluation:

a. The Government will evaluate the extent to which the proposal demonstrates recent relevant experience and key personnel experience by the offeror (including an evaluation of the applicable credentials such as training, education, and experience of Key Personnel) in performing the breadth and depth of specific tasks in Section C of this solicitation. Experience will be evaluated on the (1) complexity, (2) scope, (3) project size and (4) location of the work performed as compared to the requirements contemplated under this solicitation and described in Section C paragraphs 3.2 through 3.7.

b. Minimum Required Experience: To be considered for this contract, the Offeror must demonstrate experience (in project AND key personnel experience) in one subtask within each of the following six (6) major specific tasks described in Section C of this solicitation by completing Attachment J-14:

3.2: Scientific Field Work and Associated Analyses
3.3: Supporting Services and Technical Analyses
3.4: Biosecurity and Aquatic Species Management

3.5: Integrated Natural Resources Management Plans
3.6: NEPA, Environmental Planning and Supporting Studies
3.7: GIS Mapping

c. Desired Additional Competencies. The offeror will be evaluated more favorably on experience that involves two or more subtasks within the ~~five~~ six major specific tasks described in section (3)b.

d. Key Personnel: Key personnel must meet the education, training, and experience qualifications described in Attachment J-2 to be considered for this contract. Letters of commitment shall be submitted for all key personnel including subcontractor key personnel, who do not currently work for the Offeror.

e. Relevant Projects:

(1) Definition of "recent relevant project" is as follows:

a. In general, relevant project means projects whose scopes of work were similar to the types of projects that may be ordered against this MAC that require the performance of one or more of the Specific Tasks described in Section C, paragraphs 3.2 through 3.7.

b. A relevant project shall also be for an amount of at least $24,000 in dollar value and shall be at least 80% completed from the issuance date of this solicitation. A relevant project shall involve performance that involved the application of federal regulatory requirements in carrying out marine resources technical services. A relevant project must either be a standalone contract or task order under an Indefinite Delivery/Indefinite Quantity (IDIQ) Contract. The submission of information or the description of the scope of a Basic IDIQ contract will not be considered a relevant project.

c. Recent is defined as five (5) years from the issuance date of this solicitation.

(2) Failure to demonstrate experience in the minimum required competencies shall be considered a deficiency.

(3) The distinction between experience and past performance is that experience pertains to the volume of work completed by a contractor that are comparable to the types of work described under the definition of recent, relevant projects, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

(4) If an Offeror is utilizing or relying on experience or past performance information from affiliates/subsidiaries/parent companies/LLC/LTD member companies (where their name is not exactly as stated on the SF33), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm/LLC/LTD member companies will have meaningful involvement in the performance of the contract in order for the experience, past performance, and/or key personnel information of the affiliate/subsidiary/parent firm/LLC/LTD member companies to be considered. The proposal shall state the specific resources (e.g., workforce, management, facilities, or other resources) that the affiliate/subsidiary/parent/LLC/LTD member companies will commit toward the performance of the contract. If meaningful involvement is not demonstrated in the proposal, the affiliate, subsidiary or parent company's experience or past performance and/or key personnel information will not be considered.

(5) A subcontractor's experience and past performance will not be given the same level of consideration as either a prime contractor or a joint venture partner because there is no direct legal relationship between the Government and a subcontractor. The Government may consider the experience or past performance of a subcontractor where the prime contractor provides, within its proposal, a complete and fully executed teaming agreement or equivalent binding contractual agreement which creates legal responsibility on the part of the subcontractor. To be considered valid for evaluation purposes, the submitted agreement must be fully signed and dated by both the Prime Contractor and the proposed Subcontractor, must explicitly reference this solicitation number and clearly define the specific roles the subcontractor will perform if the prime is awarded the contract.

(6) Prime contractor-subcontractor teams/Joint Ventures/LLCs/LTDs with a demonstrated history of working successfully together on prior projects may be considered more favorably than those without such history. Similarly, Joint Ventures with a demonstrated history of working successfully together on prior projects may be considered more favorably than those without such history.

(7) Offerors that demonstrate experience performing marine resource technical services at sites in Guam, Hawaii, or the Northern Mariana Islands may be evaluated more favorably.

(8) Offerors that demonstrate experience working for the Navy/Marine Corps may be evaluated more favorably.
(9) Project experience that include key personnel who are currently employed by the offeror in the same or similar capacity, will be evaluated more favorably.

(10) Resumes of Key Personnel where the Key Personnel individuals' qualifications significantly exceed minimum requirements set forth in ~~Section C, paragraphs 3.2 to 3.7~~, ~~respectively,~~ Attachment J-2 may be evaluated more favorably.

(11) Failure to use and completely fill out the templates referenced above or provide the required information may result in proposals being considered deficient for this Factor 1 Experience.

B. FACTOR 2, SAMPLE PROJECT

(1) Offerors shall demonstrate their technical approach for the sample project described in Attachment J-16. This technical factor will be used to measure the Offeror's understanding and probability of successfully accomplishing the effort. The sample project is for evaluation purposes only and will not be awarded or result in a task order.

(2) Submittal Requirements:

a. Technical Approach: Submit a narrative describing the offerors proposed technical approach to accomplishing the requirements and include a project schedule. The technical approach submittal (including project schedule) shall not exceed six (6) single-sided pages). Each page will utilize one-inch or larger margins on all four sides of the page and print type of no less than font size 11. Each page shall be numbered and the page number may print within the margin at the bottom of each page.

b. Staffing Plan: Use Attachment J-17, Sample Project Key Personnel Assignments, to list key personnel assigned to specific tasks in the sample project, including subcontractors. Use Attachment J-15, Personnel Experience/Qualifications, for each individual listed on Attachment J-17 to demonstrate their experience and qualifications. Even if an individual was previously included as Key Personnel under Factor 1, a separate and complete Attachment J-15 must be submitted for them under Factor 2 if they are also proposed for the Sample Project. Attachment J-15 forms submitted in support of Factor 2 personnel shall not exceed 10 single-sided pages per personnel. Submissions should remain concise and relevant.

c. Assumptions: The offeror shall not make assumptions. If the offeror is not clear on the scope of the project, they shall submit their questions in writing in accordance with Section L, paragraph L2 INSTRUCTION FOR SUBMITTING QUESTIONS REGARDING SOLICITATION.

(3) Basis of Evaluation:

a. The Government will evaluate the extent to which the Offeror's technical approach for the sample project (1) demonstrates an understanding of the scope of work, and (2) is a realistic approach for successful completion of the sample project within a reasonable time frame.

b. Proposals that cannot realistically or successfully accomplish the required tasks with the proposed approach/labor hours will be evaluated less favorably. Offerors failing to provide clarifying descriptions/details on how they intend to implement each task will be deemed to have failed to demonstrate an understanding of the work and will be evaluated less favorably.

c. Identifying and conforming to applicable federal statues, regulations, standards and guidelines.

d. Proposals that demonstrate a thorough understanding of the technical and logistical complexities of the work will be evaluated more favorably. Proposals that offer added value through unique approaches to the scope of work will also be evaluated more favorably.

C. FACTOR 3, SAFETY:

(1) This Factor assesses how the Contractor consistently demonstrates a commitment to safety and the
ability to properly manage and implement safety procedures for themselves and all tiers of subcontractors under their purview.

(2) Solicitation Submittal Requirements.

a. The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or joint venture, the Offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors

b. DART Rate: Submit five (5) previous complete calendar years' [CY2021, CY2022, CY2023, CY2024, and CY2025] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

1. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

2. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

Number of DART incidents x 200,000
DART Rate = Total Number of Employee Labor Hours Worked

c. TCR Rate: Submit five (5) previous complete calendar years' [CY2021, CY2022, CY2023, CY2024, and CY2025] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

1. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

2. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

Number of TCR incidents x 200,000
TCR Rate = Total Number of Employee Labor Hours Worked

d. Technical Approach for Safety: Submit a narrative that addresses the following:

1. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

2. Describe the evaluation process used to select potential subcontractors.

3. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the Offeror's own in-house workforce).

4. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page.

e. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(3) Basis of Evaluation:

a. The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

b. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

1. Missing data without an explanation is considered a deficiency.

2. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.

3. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

4. This chart correlates the DART rate to the level of risk:

Risk DART Rate
Very Low Risk Less Than 1.0
Low Risk From 1.0 to 1.99
Moderate Risk From 2.0 to 2.99
High Risk From 3.0 to 4.0
Extremely High Risk Greater than 4.0

c. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

1. Missing data without an explanation is considered a deficiency.

2. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.

3. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

4. This chart correlates the TCR rate to the level of risk:

Risk TCR Rate
Very Low Risk Less Than 2.49
Low Risk From 2.5 to 3.49
Moderate Risk From 3.5 to 4.49
High Risk From 4.5 to 5.99
Extremely High Risk Greater than 6.0

d. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

1. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

2. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.

3. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

4. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page. Information on pages beyond this will not be considered.

e. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

D. FACTOR 4, SMALL BUSINESS UTILIZATION AND PARTICIPATION

(1) It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUBZone SB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance.

(2) This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

(3) Solicitation Submittal Requirements:

a. All offerors (large, non-profits, AND small businesses) shall use Attachment J-18, (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under Factor 1, experience, shall be included on Attachment J-18. Failure to include each project submitted under Factor 1, Experience, on Attachment J-18, or the failure to fully complete Attachment J-18 for each project may result in a deficiency. Only complete Attachment J-18. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment J-18 will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete Attachment J-18 are included at the beginning of the attachment.

b. All Offerors (large, non-profits, AND small businesses) shall use Attachment J-19 (Small Business Participation Commitment Document (SBPCD)) to submit the following required information for evaluation of this factor:

1. To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protege agreement, letter of commitment, etc.) with each subcontractor.
o If subcontractors are not identified by name, offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, offerors shall provide an explanation and rationale on the ability to achieve the proposed participation. (See Attachment J-19, paragraph 5)

o If a LB offeror does not intend to subcontract, provide a detailed explanation why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See Attachment J-19, paragraph 6)

2. To demonstrate maximum practicable participation of small businesses, identify (in terms of dollar value and percentage of the total contract value) the offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is 18%. Offerors who are not able to meet the minimum total small business participation requirement of 18% (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.

3. Only complete Attachment J-19. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment J-19 will not be evaluated.

c. Large business offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.

d. Small business offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

(2) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

a. The extent to which the offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for Factor 1, Experience, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the offeror.

b. The extent to which the offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUBZone SB,

VOSB, and SDVOSB in the performance of this contract within the SBPCD.

1. The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed 18% of the total contract value, unless the offeror provides a reasonable and well-documented explanation for why the minimum 18% small business participation requirement cannot be achieved.
o Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
o Proposing less than 18% total small business participation requirement may result in a deficiency.
o Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a deficiency.

c. The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protege agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.

1. The offeror may receive a deficiency if firm commitments with subcontractors are not provided and the offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
o The offeror may be rated lower, if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance. (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract.)

E. FACTOR 5, PAST PERFORMANCE:

(1) The Offeror's past performance evaluation will be based upon customer satisfaction in the execution of the same recent relevant projects submitted for Factor 1, Experience. Customer satisfaction will include assessing quality control and timely performance.

(2) Solicitation Submittal Requirements:

a. IF A COMPLETED CPARS EVALUATION IS AVAILABLE, IT SHALL BE SUBMITTED WITH THE TECHNICAL PROPOSAL. IF THERE IS NOT A COMPLETED CPARS EVALUATION, the Past Performance Questionnaire (PPQ) included in the solicitation as Attachment J-20 is provided for the offeror or its team members to submit to the client for each project the offeror includes in its proposal for Factor 1, Experience. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE.

b. IF A CPARS EVALUATION IS NOT AVAILABLE, ensure correct phone numbers and email addresses are provided for the client point of contact. Completed and signed PPQs should be submitted with your proposal. Unsigned PPQ forms will be considered incomplete and will not be accepted. If the offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ (Attachment J-20), which will provide contract and client information for the respective project (s). Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contacts, Ms. Casey Sugihara, via email at casey.c.sugihara.civ@navy.mil, and Ms. Rachel Gerakas, via email at rachel.m.gerakas.civ@us.navy.mil prior to proposal closing date. Offerors shall not incorporate by reference into their proposal PPQs or CPARS previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

c. Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1 - Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed four (4) pages (single-sided, 8.5" x 11", 1" margin on all four sides, and 11-point font or larger).

(3) Basis of Evaluation:

In addition to the above, the Government may review any other sources of information for evaluating past performance using all CAGE/DUNS numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the offeror's proposal, inquiries of owner representative(s) (e.g., Federal Awardee Performance and Integrity Information System (FAPIIS), Subcontracting Plan Reporting in SAM.gov, and any other known sources not provided by the offeror).

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

Past performance relevancy will be rated as either "Acceptable" or "Unacceptable". The degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., Federal Awardee Performance and Integrity Information System (FAPIIS), Subcontracting Plan Reporting in SAM.gov, and information obtained from any other source) reflect a trend of satisfactory performance considering:

a. A pattern of successful completion of tasks;
b. A pattern of deliverables that are timely and of good quality;
c. A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.);
d. Recency of tasks performed that are identical to, similar to, or related to the task at hand; and
e. A respect for stewardship of Government funds.
f. See notes for Factor 1, Experience.

4. PRICE EVALUATION FACTOR:

A. Solicitation Submittal Requirements:

(1) The sample project will be utilized for the price evaluation. Offerors are required to use the template sample project price sheet (Attachment J-21) and include all pricing information as specified for the ~~six (6)~~ four (4) Work Elements and the Total Amount.

(2) Offerors shall submit their completed sample project price sheet for the sample project in their Price Proposal binder/folder (see Section L for additional information).

B. Basis of Evaluation:

(1) The offeror's proposed prices will be evaluated to verify the offeror's understanding of the requirements and to assess the accuracy and price reasonableness in performance of the sample project. An offeror's price may be deemed unbalanced if its prices are found to be either unreasonably high or unrealistically low in relation to the proposed work, which may result in a less than favorable rating.

(2) The Government will evaluate each offeror's Total Price. Total Price consists of the sum for all offered amounts for all ~~five (5)~~ four (4) Work Elements. The Government may utilize one or more of the following price analysis techniques:

(a) Comparison of proposed prices received in response to the solicitation.
(b) Comparison of proposed prices with the Independent Government Estimate.
(c) Comparison of proposed prices with available historical information.
(d) Comparison to market survey results.